

24NNCV04104 24NNCV04104

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV04104 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: September 11, 2026

Case No: 24NNCV04104 Trial Date: May 10, 2027

Case Name: Ogihara v. Kim, et al.

MOTION FOR LEAVE TO FILE A SAC

[CCP § 473 subd. (a)(1)]

Moving Party: Plaintiff, Ikuo Ogihara

Responding Party: Defendants, Andrew Kim and HBSM Care Inc. [Unopposed]

RELIEF REQUESTED:

An order granting leave to file a Second Amended Complaint

CAUSES OF ACTION: from First Amended Complaint

1) Breach of Contract

2) Breach of Contract

3) Breach of Contract

4) Account Stated

5) Money Had and Received

6) Open Book Account

7) Declaratory Relief

SUMMARY OF FACTS:

Ikuo Ogihara ("Plaintiff") alleges that in June of 2013, Plaintiff entered into a Revolving Line of Credit Agreement (RLCA), accompanying Promissory Note (Note) and Personal Guaranty (Guaranty) pursuant to which Plaintiff agreed to loan Defendants \$500,000 in exchange for Defendants' repayment of the principal amount in five years with an interest rate of 3% per annum compounding on the original principal of the loan. Plaintiff alleges that defendant Andrew Kim ("Kim") executed the RLCA in his capacity as owner of Sports Med Care, Inc., which was later amended to name only HBSM Care, Inc ("HBSM"). Kim also executed the Note, and, as an additional term to the RLCA and to provide further assurance to Plaintiff, Kim also executed the Guaranty to the Note in his individual capacity as personal guarantor.

The FAC alleges that the Note was originally due and payable on July 14, 2018, with Defendants allowed to make only the interest payments during the first 3 years of the loan and then to pay the principal plus accrued interest in the remaining final two years. Defendants, however, failed to make timely interest payments and instead made sporadic interest payments over time. They also failed to make any payments toward the principal loan balance. The sporadic payments continued until 2021, and, despite promises of repayment, Defendants failed to make any additional payments to Plaintiff since May 23, 2021. The FAC alleges that as of the filing of the Complaint, the total outstanding amount owed by Defendants is approximately \$609,621.17.

ANALYSIS:

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars. (CCP, § 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.)

As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Ibid.*) California courts ordinarily will not consider the validity of a proposed amended pleading in ruling on a motion for leave to amend given that any grounds for a demurrer or a motion to strike will be premature at that time. (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 [citations omitted, overruled on other grounds].)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court, rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (CRC, rule 3.1324 (b).)¿

Plaintiff seeks leave to file a second amended complaint to add new causes of action, defendants, and allegations. Plaintiff's motion is made on the grounds that newly discovered evidence has revealed several new facts warranting the proposed additional allegations. (Mot., pp. 16:20-17:4.) The motion includes a copy of the proposed SAC and describes the additional allegations and their location within the pleading. (Sohi Decl., ¶¶ 3; Exs. 1-2.) Plaintiff has also submitted a separate declaration specifying the effect of the amendment (Sohi Decl., ¶ 4), why the additional allegations are necessary and proper (Sohi Decl., ¶¶ 5-7), when the facts giving rise to the amended allegations were discovered (Sohi Decl., ¶ 8), and why the request for amendment was not made earlier (Sohi Decl., ¶¶ 9-17.) The Court finds that Plaintiff has complied with CRC, rule 3.1324 subdivisions (a) and (b).

Defendants have not filed any opposition to this motion, and thus there are no arguments as to why the motion should not be granted.

Thus, the motion is GRANTED.

RULING:

Plaintiff Ikuo Ogihara's Motion for Leave to File a Second Amended Complaint is GRANTED.

The amended pleading is to be filed within 10 days of this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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